

Authority for Personal Data
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The Minister of the Interior and Kingdom Relations
P.O. Box 20011
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Date

February 8, 2024

Our reference

z2023-302596

Your letter dated

December 13, 2023

Your reference

2023-0000689455

Subject

Advice on the draft for the Act to promote integrity and functioning of decentralized governance second tranche

Dear Mr. De Jonge,

In your letter dated December 13, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, paragraph 4, of the General Data Protection Regulation (GDPR), regarding the draft for the amendment of the Municipalities Act, the Provinces Act, the Water Boards Act, and the Public Bodies Bonaire, Sint Eustatius, and Saba Act in connection with the risk analysis of administrative integrity for candidate administrators (Act to promote integrity and functioning of decentralized governance second tranche) (hereinafter: the draft).

Assessment of the personal data aspects of the draft gives the AP reason to make several comments.

Scope of the draft

The draft stipulates that a risk analysis must be conducted regarding the administrative integrity of the intended alderman.¹ The government previously, in 2021, prepared a legislative proposal regarding risk analysis,² but after objections from the Advisory Division of the Council of State, it was decided not to submit it to the House of Representatives. The current draft has been adjusted accordingly.

¹ The draft amends the Municipalities Act, the Provinces Act, the Water Boards Act, and the Public Bodies Bonaire, Sint Eustatius, and Saba Act. For brevity, this advice refers to municipalities and municipal bodies, but also applies, where relevant, to provinces and water boards. The AP is not authorized to advise on the draft concerning Caribbean Netherlands.

² Draft amendment to the legislative proposal to promote integrity and functioning of decentralized governance.

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The proposed risk analysis relates to the following subjects:

- incompatible relationships;
- compliance with the oath of office;
- secondary positions;
- financial interests;

- prohibited actions;
- abstention from deliberation and voting in case of conflicts of interest;
- handling of confidential information.

The (special) personal data processed in this context are sourced from the following sources:³

- information provided by the intended alderman (a completed questionnaire, the CV, and an overview of secondary positions held by the intended alderman, insofar as this is not evident from the CV);
- public sources (news reports, social media, public publications, Trade Register Chamber of Commerce, etc.);
- network of the intended alderman;
- conversation with the intended alderman.

The mayor oversees the execution of the risk analysis. Prior to the appointment of the alderman, only the conclusion, recommendations, and any measures resulting from the risk analysis will be submitted to the council. A confidentiality obligation applies to the outcomes of the risk analysis that are not submitted to the council. The intended alderman is given the opportunity to respond to the outcomes of the risk analysis before they are submitted to the council. An alderman will make any measures public immediately after appointment.

Furthermore, the draft stipulates that an alderman must not have financial interests, must not own securities, and must not engage in securities transactions insofar as this is undesirable for the proper fulfillment of their office.

Advice

1. Legal certainty of sources

The explanation accompanying the draft mentions the sources that can be consulted in the execution of the risk analysis.

Legislation regarding interference with the right to protection of personal data must, according to established case law, always be clear and precise, and its application must be predictable for those to whom it applies.⁴

³ Explanatory memorandum, p. 8.

⁴ Recital 41 of the GDPR.

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In light of this principle of legal certainty, the AP advises to include a comprehensive enumeration of the sources in (lower) legislation.

2. Further processing of personal data from public sources

A category of sources that can be consulted according to the explanation concerns public sources.

The AP considers it likely that personal data will be processed for a different purpose (conducting the risk analysis) than for which they were originally included in the public sources.

Processing for another purpose is only permitted on the basis of one of the following grounds:

- Consent of the data subject.
- A provision of Union law or a provision of national law that constitutes a necessary and proportionate measure in a democratic society to safeguard the objectives referred to in Article 23, paragraph 1, of the GDPR. An enumeration of the public sources in (lower) legislation is therefore also important in this context and not only because of the principle of legal certainty (see previous advisory point).
- A compatible further processing.⁵

The explanation accompanying the draft does not address possible further processing and the ground on which the further processing will take place. The AP considers the second mentioned ground in this

case to be the most appropriate.

The AP advises to include the justification for this in the explanation.

3. Necessity of processing special personal data

According to the explanation accompanying the draft, special personal data will also be processed in the context of the risk analysis.⁶ The draft or the explanation does not specify which category(ies) of special personal data are involved. Moreover, the necessity of processing this data is not substantiated. This is all the more remarkable since the explanation accompanying the earlier proposal from 2021 indicated that no special personal data would be involved in the risk analysis, "because this data does not contribute sufficiently to the intended purpose, namely mapping the administrative integrity of the intended alderman."⁷

It is of great importance that the legislator provides clarity in legal texts and explanations about the nature of the processing for which a legal basis is provided and justifies its legitimacy. Where it does not follow as a matter of course from the legal provisions themselves, viewed in context, that the intention is also to make the processing of special personal data possible, it is reasonable to clarify this by including an explicit provision.⁸

5 Article 6, paragraph 4, of the GDPR.

6 Explanatory memorandum, p. 7, 8, and 13.

7 Explanatory memorandum accompanying the amendment bill for the Act on Promoting Integrity and Functioning of Decentralized Governance, text as sent to the advisory department of the Council of State.

8 See also the AP's advice, Advice on the draft for the Act on the Assessment Committee for Doping Cases, December 22, 2021. z2021-17479, p. 4-6.

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The AP advises to mention in the explanation that no special personal data will be processed, or to specify the (category(ies) of) special personal data in (lower) legislation and substantiate the necessity thereof in the explanation.

4. Exception grounds for the processing prohibition of special personal data

The processing of special personal data is furthermore prohibited,⁹ unless there is an exception ground.¹⁰ The explanation accompanying the draft does not indicate which exception ground applies.

The AP advises to indicate in the explanation which exception ground is applicable and how the requirements set by the relevant exception ground are met.

5. Ensuring legal certainty

The explanation accompanying the draft mentions several procedural safeguards regarding the risk analysis, including a) the results of the risk analysis can only be shared with the council after the intended alderman has explicitly given consent, and b) the intended alderman is free to withdraw at any time, after which the collected information will be destroyed, depending on what is determined in the municipal selection list for archival documents.¹¹ These safeguards are not included in the legislative text.

In light of the principle of legal certainty, the AP advises to include these safeguards in the legislative text.

6. Advising Caribbean Netherlands

The draft proposes similar rules for conducting a risk analysis and dealing with financial interests concerning the BES islands.¹² The AP is only authorized to advise on the draft insofar as it concerns European Netherlands.

The AP advises to submit the draft, if this has not yet been done, for advice to the Commission for the Supervision of the Protection of Personal Data BES.

Workload AP

The AP notes that the draft is not expected to require additional effort from the AP.

9 Article 9, paragraph 1, of the GDPR.

10 Article 9, paragraph 2, of the GDPR.

11 Explanatory memorandum, p. 13.

12 Article IV of the draft.

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Publication

This advice will be published on the AP's website within two weeks.

Yours sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman